

Amendment No. 1 to SB1028

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1028

House Bill No. 999*

by deleting subsection (b) in Section 4 and substituting instead:

(b) Ballots cast in an election shall not utilize any quick response (QR) code, linear or two-dimensional bar codes, data glyphs, any other form of data storage within the umbrella of Automatic Identification and Data Capture (AIDC) technologies, or any other comparable machine encoded or otherwise non-human readable ballot vote data storage for the purpose of tabulation. Tabulation of votes must utilize the human readable machine text portion or the machine mark of the ballot; provided, that the mark clearly denotes the voter's selection.

AND FURTHER AMEND by deleting Section 9 and substituting instead:

SECTION 9. Tennessee Code Annotated, Section 2-20-104(a)(1), is amended by deleting subdivisions (A) and (B) and substituting the following:

(A) Must be certified pursuant to § 2-9-110 and certified by the election assistance commission as having met the applicable voluntary systems guidelines. In addition, the precinct-based optical scanners must be tested to ensure the scanners operate in accordance with the guidelines;

(B) Must, with all relevant documentation, be made available by their vendors, at the request of the state election commission or the secretary of state for review by an independent expert, selected by the state election commission or the secretary of state, to ensure the functionality and security of its systems;

(C) Must be capable of tabulating a ballot that contains a visible secure watermark feature, as required for ballots under § 2-5-212; and

(D) Must be capable of utilizing both current and future optical character recognition technology, or other related technology, that can verify the human readable text.

AND FURTHER AMEND by inserting the following new section immediately preceding the penultimate section and renumbering the subsequent sections accordingly:

SECTION 11. Tennessee Code Annotated, Section 2-5-207(c), is amended by deleting the subsection and substituting instead:

(c)

(1) All paper ballots for use in a polling place must include a watermark approved by the coordinator of elections and be serially numbered by the printer, and no two (2) ballots for use in a single precinct shall have the same number. The county election commission shall keep a record of the numbers of the ballots supplied to each precinct polling location.

(2) The county administrator of elections shall sign an attestation upon receipt of ballots for each election, with a secured count by ballot type and reconcile the ballots post-election for ballot applications, spoilage, and any unused ballots for reconciliation purposes.

AND FURTHER AMEND by deleting the effective date section and substituting instead:

SECTION 13. This act takes effect July 1, 2026, the public welfare requiring it.